

COMPLAINTS POLICY

1. Introduction

Sporting Chance Project Ltd (SCP) is committed to safeguarding and promoting the welfare of children and young people (CYP) and maintaining a safe, supportive, and inclusive environment.

SCP operates across Bristol City Council, South Gloucestershire Council, and Bath & North East Somerset (BANES), and follows the safeguarding procedures and referral pathways of the relevant Local Authority.

As a non-school Alternative Learning Provider, SCP operates this complaints procedure in accordance with its contractual and safeguarding responsibilities. The commissioning school or local authority retains responsibility for complaints concerning its own decisions or statutory duties.

We value feedback from:

- CYP
- Parents/carers
- Staff
- Commissioners and partners

We recognise that concerns and complaints are an opportunity to:

- Improve practice
- Strengthen relationships
- Ensure accountability

All complaints will be handled:

- Promptly
- Fairly
- Transparently
- In line with safeguarding and legal requirements

SCP will ensure that:

- Complaints are taken seriously and treated respectfully
- The welfare of the child is always paramount
- Complaints are handled confidentially and appropriately
- No individual is disadvantaged for raising a concern in good faith
- Safeguarding concerns are prioritised and escalated immediately
- Outcomes are fair, evidence-based, and proportionate

2. Purpose of the Policy

This policy aims to:

- Provide a clear and accessible complaints process
- Ensure complaints are managed fairly and consistently
- Protect the rights and wellbeing of all parties
- Ensure safeguarding concerns are prioritised
- Promote continuous improvement

3. Scope of the Policy

This policy applies to service-related complaints made by or on behalf of:

- CYP
- Parents/carers
- Staff
- Commissioners (schools, local authorities)
- External stakeholders

Employment grievances will be managed under the applicable employment procedure. Disclosures in the public interest will be managed under SCP's Whistleblowing Policy. Complaints about a decision or service for which a commissioning school or local authority is responsible will be directed to that organisation's complaints procedure.

4. Safeguarding Responsibilities

If a complaint raises a safeguarding concern:

- It will be treated as a safeguarding matter, not a standard complaint
- It will be referred immediately to Tony Ricketts, Designated Safeguarding Lead (DSL), or to Sharon Galton or Jordan Ricketts, Deputy DSLs
- Safeguarding procedures will take precedence and the complaint timetable may be adjusted where necessary to avoid prejudicing statutory-agency enquiries
- If a complaint concerns the conduct of an adult working with children, it will be managed under SCP's Allegations Against Staff, Low-Level Concerns and LADO Procedure and the relevant section of SCP's Child Protection & Safeguarding Policy. Where the concern is about Tony Ricketts, it must be reported to a Deputy DSL, who will follow the independent escalation and LADO route in that procedure and must not refer the matter to Tony.

SCP will:

- Follow SCP's Child Protection & Safeguarding Policy
- Liaise with relevant external agencies where required
- Ensure the safety of the child is prioritised at all times
- Ensure that a complaint process does not delay a referral to children's social care, the LADO, the police or another statutory agency

5. Roles and Responsibilities

5.1 Sporting Chance Project Ltd (Provider)

- Ensure complaints are handled efficiently and fairly.
- Maintain confidentiality and act with discretion in line with safeguarding and data-protection requirements.
- Escalate complaints involving child protection or safeguarding immediately to the DSL or a Deputy DSL.
- Ensure that any issues raised in complaints are addressed appropriately, either through corrective action, support, or communication with relevant agencies.

5.2 Student & Education Coordinator

Responsible for:

- Managing and overseeing the complaints process
- Logging and tracking complaints
- Coordinating fair and impartial investigations and identifying any conflict of interest
- Communicating with complainants
- Referring safeguarding concerns immediately to the DSL or a Deputy DSL

5.3 Staff Members

All staff must: Take concerns seriously; report complaints appropriately; support the investigation process; and act immediately where information indicates that a child may be at risk of harm.

5.4 Parents/Carers and Students

Complainants are encouraged to:

- Raise concerns promptly
- Provide clear information
- Engage constructively with the process

SCP will ensure complaints can be raised in a safe, supportive, accessible and child-friendly environment, including through a trusted adult where appropriate. A CYP will never be required to confront the person who is the subject of their complaint.

Complaints should be raised promptly, with clear details provided to enable effective resolution. SCP will not refuse to consider a complaint solely because the complainant needs help to explain it or cannot provide it in writing.

6. Types of Complaints Covered

This policy covers any concerns or complaints raised about:

- **Educational provision:** The quality of teaching, learning, or curriculum offered.
- **Safeguarding & Child Protection: Concerns** about a child's safety, wellbeing or protection from harm. These concerns will be managed under safeguarding procedures rather than investigated solely as complaints.
- **Staff conduct:** Concerns regarding the behaviour or actions of staff members. Where the conduct may meet the harm threshold or constitute a low-level concern, SCP's Allegations Against Staff, Low-Level Concerns and LADO Procedure will apply.
- **Health & Safety:** Concerns about the physical or emotional wellbeing of students.
- **Equality & Inclusion:** Concerns relating to discrimination, harassment, prejudice-based harm, or failure to accommodate the needs of all students.
- **Other services provided by SCP:** Facilities, resources, or other aspects of the provision.

7. Complaints Procedure

We encourage all individuals to raise concerns as soon as possible to allow us to address issues quickly and effectively. The following procedure outlines the steps for resolving complaints. Safeguarding concerns, allegations or concerns about adults working with children, whistleblowing disclosures and matters requiring urgent statutory-agency action will not be required to follow the informal stage.

7.1 Informal Resolution

In most cases, we encourage parents, carers, or students to raise concerns informally by discussing them with the relevant member of staff (e.g., the student's tutor or the Student & Education Coordinator). Many issues can be resolved at this stage through open communication and prompt action. A concern about a child's safety must be reported directly to the DSL or a Deputy DSL and must not be managed informally.

7.2 Formal Complaint

If the issue cannot be resolved informally, or is not appropriate for informal resolution, the complainant can submit a formal complaint. This should normally be made by email or letter to the Student & Education Coordinator. SCP will provide assistance and will make a written record of a formal complaint submitted verbally where necessary. Safeguarding concerns must be reported immediately to the DSL or a Deputy DSL through the routes in section 4.

The Student & Education Coordinator will acknowledge receipt of the complaint within 5 working days.

A full investigation will be conducted by an appropriate person who is not the subject of the complaint and has no material conflict of interest. The complainant will be informed of the outcome within 15 working days. If this timeframe needs to be extended, the complainant will be informed of the reason for the delay and provided with a revised timescale.

If the complaint involves safeguarding or child protection, the DSL or a Deputy DSL will ensure that safeguarding procedures are followed and that external agencies are notified as appropriate. The safeguarding response will not await completion of the complaints investigation.

7.3 Investigating Safeguarding Complaints

If a complaint involves safeguarding or child protection, the following steps will be taken:

- The complaint will be logged and referred immediately to the DSL or a Deputy DSL.
- The DSL or Deputy DSL will follow SCP's Child Protection & Safeguarding Policy to assess the risk to the child and determine the appropriate course of action.
- If necessary, the matter will be escalated without delay to the relevant local authority children's social care service, the LADO, the police, or other appropriate agencies.

All actions will be documented in the appropriate complaint and/or safeguarding record and information will be handled securely and shared where necessary and proportionate.

8. Outcome and Follow-Up

Once the investigation is completed, the complainant will be provided with a written response outlining the findings, reasons for the decision and any actions that can appropriately be disclosed. If the complaint is upheld, appropriate measures will be put in place to address the issue and prevent recurrence. SCP will not disclose confidential personal information, employment action or safeguarding information about another person unless there is a lawful basis to do so.

If the complainant is not satisfied with the outcome, they may request a review by the Director, provided the Director was not the decision-maker at the formal stage and is not the subject of the complaint. The review will be undertaken by a person who has not previously determined the complaint. Where the Director is involved, conflicted or has already determined the complaint, SCP will arrange review by a suitably independent person or refer the matter to the commissioning organisation in accordance with the relevant contract.

If the complainant remains dissatisfied after SCP's internal process, they may use the complaints or dispute-resolution route of the relevant commissioning school, local authority or other body specified in the placement contract. Ofsted does not ordinarily resolve individual complaints, but information may be provided to Ofsted where the matter falls within its remit. Nothing in this policy prevents a person from contacting children's social care, the LADO, the police, Ofsted or another competent authority directly where appropriate.

9. Confidentiality

Confidentiality will be maintained as far as possible throughout the complaints process. Details of the complaint will only be shared with those who need the information to investigate, resolve or oversee the issue, or where disclosure is otherwise required by law. If the complaint involves safeguarding concerns, information will be shared with the necessary authorities in accordance with SCP's Child Protection & Safeguarding Policy; consent is not required where sharing is necessary to protect a child.

10. Recording and Monitoring

SCP will:

- Log all complaints centrally
- Record: Nature of complaint; actions taken; outcome
- Monitor patterns and trends, including concerns indicating discrimination, prejudice-based harm or safeguarding risk
- Report findings to the Director, subject to appropriate confidentiality and conflict-of-interest safeguards

This supports:

- Quality assurance
- Continuous improvement

Complaint records will be retained securely in accordance with SCP's Data Protection & Privacy Policy and retention arrangements. Safeguarding information will also be recorded and retained in the appropriate safeguarding record and must not be held only within the complaints file.

11. Accessibility

We are committed to ensuring this policy and complaints procedure is accessible to all. If you require this policy in a different format (e.g., large print, translated version, assisted explanation, or support from a trusted adult), please contact the Student & Education Coordinator. Reasonable adjustments will be made where required.

12. Data Protection

All personal data collected during the complaints process will be handled in line with SCP's Data Protection & Privacy Policy, the Data Protection Act 2018, UK GDPR and the Data (Use and Access) Act 2025. Individuals may exercise applicable data-protection rights, including requesting access to their personal data or correction of inaccurate data, subject to relevant statutory exemptions and the rights of others.

13. Conclusion

We take all complaints seriously and aim to resolve them in a fair and timely manner. Our priority is to ensure the safety and wellbeing of all students. This policy ensures that any concerns related to child protection and safeguarding are handled appropriately and in line with Keeping Children Safe in Education 2026, Working Together to Safeguard Children 2026, current UK legislation and SCP's Child Protection & Safeguarding Policy.

- **Designated Safeguarding Lead: Tony Ricketts: 07748 636711 tony@sportingchance.co.uk**
- **Deputy Designated Safeguarding Leads: Sharon Galton and Jordan Ricketts**

Approval and document control

This policy is approved by the Director of SCP and is subject to annual review or earlier review in response to changes in legislation, statutory guidance, organisational structure or safeguarding practice.

Policy effective date:	1 September 2026
Next review date:	1 September 2027
Author:	Nigel Davies
Policy owner:	Tony Ricketts, DSL and Director
Version:	2.1 (final KCSIE 2026 controlled update)
Approval date:	10 September 2026

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